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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/516,280	08/14/2009	Zoe Marshall-Jones	HO-P036671/S0	6726

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HOUSTON, TX 77010-3095

EXAMINER

ROBERTS, LIZAH

ART UNIT	PAPER NUMBER
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1612

NOTIFICATION DATE	DELIVERY MODE
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03/14/2013

ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

hoipdocket@fulbright.com

Office Action Summary	Application No. 12/516,280	Applicant(s) MARSHALL-JONES ET AL.	
	Examiner LEZAH ROBERTS	Art Unit 1612	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on September 12, 2012.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 3-5, 7-10 and 19 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 3-5, 7-10 and 19 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- 1) ☒ Notice of References Cited (PTO-892)
- 2) ☐ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date ____
- 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date ____
- 4) ☐ Other: ____

DETAILED ACTION

Applicants' arguments, filed September 12, 2012, have been fully considered. Rejections and/or objections not reiterated from previous office actions are hereby withdrawn. The following rejections and/or objections are either reiterated or newly applied. They constitute the complete set presently being applied to the instant application.

The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claims

Claim Rejections - 35 USC § 103 - Obviousness

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103(a) are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.
3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims under 35 U.S.C. 103(a), the examiner presumes that the subject matter of the various claims was commonly owned at the time any inventions covered therein were made absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and invention dates of each claim that was not commonly owned at the time a later invention was made in order for the examiner to consider the applicability of 35 U.S.C. 103(c) and potential 35 U.S.C. 102(e), (f) or (g) prior art under 35 U.S.C. 103(a).

1) Claims 3-5, 7-10 and 19 are rejected under 35 U.S.C. 103(a) as being unpatentable over McGenity et al. (US 6,652,892) in view Dard-e-dandaan (1909) in further view of Murad (1911).

McGenity et al. disclose breath freshening animal food compositions comprising one or more plant extracts (Abstract). The plant extracts include myrtle. It is also disclosed that breath malodor can be caused by conditions such as gingivitis (col. 1, lines 45-50).

McGenity et al. differ from the instant claims insofar as they do not disclose the myrtle is myrtle leaf.

Dard-e-dandaan discloses an oral composition for treating gingivitis and toothaches. The compositions include *Myrtus Communis* (common myrtle).

The reference differs from the instant claims insofar as it does not disclose the compositions are used to treat gingivitis in a cat or dog.

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It would have been obvious to one of ordinary skill in the art to have used the animal food of McGenity et al. comprising myrtle to treat gingivitis motivated by the desire to use a food with components disclosed by the art that are used to treat gingivitis as disclosed by Dard-e-dandaan and to treat a condition that causes bad breath.

McGenity et al. in view of Dard-e-dandaan differs from the instant claims insofar as it does not disclose the myrtle is myrtle leaf.

However, Murad discloses myrtle leaf powder is used to strengthen teeth. Murad differs from the instant claims insofar as it does not disclose the compositions are used to treat gingivitis in a cat or dog.

It would have been obvious to one of ordinary skill in the art to have used myrtle leaf powder with the extract or in place of the myrtle extract in the compositions of McGenity et al. in view of Dard-e-dandaan in a method of treating gingivitis motivated by the desire to use a form of myrtle suitable for use in oral compositions and that also treats strengthens the teeth as disclosed by Murad.

In regard to claim 7-9, the myrtle is administered to pet and therefore one would reasonably conclude that the composition would also inhibit or reduce inflammation proteases and/or pathogenic bacteria, such as black pigmented anaerobes and *Peptostreptococcus*, in dental plaque.

2) Claims 3-5, 7-10 and 19 are rejected under 35 U.S.C. 103(a) as being unpatentable over Rossel (WO 2006/029893, already of record) in view of Murad (1911) as evidenced by Dard-e-dandaan (1909).

Rossel discloses compositions for treating biofilm in the oral cavity (Abstract). The compositions are suitable for humans and animal (page 31, lines 6-8), which would include dogs and cats (page 37, lines 3-7). The compositions comprise one or more plants including *Myrtus* sp. (page 4, lines 5-12). The oral product may be a gel, a paste, a gum, a toothpaste or similar (page 5, lines). The plant is used as the extract or active fraction (page 3, lines 25-31). The compositions are suitable for inhibiting or treating dental plaque, dental tartar and/or diseases related thereto such as gingivitis (page 7 lines 3-25), meeting instant claims 3-5, 7 and 19. The *Myrtus* sp. used was *Myrtus communis* (page 39, lines 12), meeting instant claim 10. The *Myrtus communis* extract was able to inhibit biofilm formation by *S mutans* on hydroxyapatite discs (page 39 line 32 - page 40, line 3) and inhibit glucosyl transferase (page 41, line 30- page 42, line 2).

Rossel differs from the instant claims insofar as it does not disclose the myrtle is myrtle leaf.

Murad discloses oral compositions comprising *Myrtus Communis* (myrtle) leaf in powdered form, which meets the limitation of administering an effective amount of myrtle leaf. The leaf is an active fraction of myrtle (as evidenced by Dard-e-daan, which discloses the leaf extract is used for treating gingivitis and toothache). The compositions are used for teeth strengthening.

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Murad differs from the instant claims insofar as it does not disclose administering the powders to a dog or cat or that the compositions treat gingivitis.

It would have been obvious to one of ordinary skill in the art to have used powdered leaf in the compositions of Rossel motivated by the desire to use an active part of the plant that comprises actives for treating gingivitis and also strengthens the teeth.

In regard to claims 8 and 9, the myrtle in the compositions of Rossel in view of Murad (1911) as evidenced by Dard-e-dandaan is administered to pets and inhibits plaque, and therefore one would reasonably conclude that the compositions would also inhibit or reduce inflammation proteases and/or pathogenic bacteria, such as black pigmenting anaerobes and *Peptostreptococcus* in dental plaque.

Claims 3-5, 7-10 and 19 are rejected.

No claims allowed.

Conclusion

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within

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TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Correspondence

Any inquiry concerning this communication or earlier communications from the examiner should be directed to LEZAH ROBERTS whose telephone number is (571)272-1071. The examiner can normally be reached on 8:30 - 5:00.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Frederick F. Krass can be reached on 571-272-0580. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Lezah W Roberts/
Primary Examiner, Art Unit 1612

Notice of References Cited	Application/Control No. 12/516,280	Applicant(s)/Patent Under Reexamination MARSHALL-JONES ET AL.	
	Examiner LEZAH ROBERTS	Art Unit 1612	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
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	I	US-			
	J	US-			
	K	US-			
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FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Dard-e-dandaan, Kahn (Author) Qaraabaadeen Azam wa Akmal (20 th century AD), Matba Siddiqi, Delhi, Matba Mustafai, Delhi, 1909 AD, page 690.
	V	Murad, Khan (Author) Khazaain-al-Advia, Vol. I (20 th century AD), Nadeem Yunus Printer, Sheikh Mohd Basheer Sons, Lahore, 1911 AD, page 371.
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a))
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.